

# NICHOLAS v LEMP

25CV48280

## PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/ADJUDICATION/PLAINTIFF'S MOTION FOR DETERMINATION OF VALIDITY AND ENFORCEABILITY; DEFENDANT'S MOTION FOR ORDER OF DISMISSAL

These matters involve real property disputes between Danny E. Nicholas ("Plaintiff") and Lani Arellanes ("Arellanes") and Cathy Lemp ("Lemp.")

Now before the Court are multiple motions: 1) Plaintiff's motion for summary adjudication; 2) Plaintiff's motion to determine the validity of contract/will; and 3) Lemp's motion for order of dismissal.

### I. Background Facts<sup>2</sup>

In or around October 24, 2021, Plaintiff entered into an agreement with Lani Arellanes (now deceased) which appears to have been memorialized in a handwritten document prepared and signed by Arellanes ("Agreement") (Petition to Void TOD, Ex. 1.) Pursuant to this Agreement, Plaintiff would build a three bedroom home for Arellanes on her property located at 2608 Arrowhead Street ("Arrowhead Property ") with Arellanes providing all materials and tools. In exchange, Arellanes would give Plaintiff a \$53,000 1.1 acre property located at 2044 Yolo Court ("Yolo Property.")

The Agreement also stated:

Should I become disabled or deceased or unable to complete this project to "occupancy" all properties 2044 Yolo Court and 2608 Arrowhead Street will become the property of Danny E. Nicholas to complete his project at Yolo Court. Neither his children nor mine are entitled to either properties.

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<sup>2</sup> The necessary facts to understand the pending motions have to be drawn from both cases which are consolidated.

Apparently things went awry in this relationship. On May 19, 2023, Plaintiff filed a lawsuit against Arellanes (Case No. 23CV46746) (“Case One”) for breach of contract, common counts and fraud. Plaintiff alleges essentially that Arellanes prevented him from returning to the Arrowhead Property, thereby preventing him from finishing the job, and failed to pay him for any of the materials or loans he provided. He further alleges that she never transferred the interest in the Yolo Property. In Case One, Plaintiff seeks \$116,260 in damages and filed a lis pendens on the Arrowhead Property to prevent Arellanes from selling it.

On September 10, 2025, Plaintiff filed a lawsuit against Cathy Lemp (Calaveras County Case No. 25CV48280) (“Case Two”) to void a Transfer on Death deed (“TOD”). Specifically, Plaintiff sought to void the TOD which purported to transfer the Arrowhead Property from Arellanes to Lemp. The TOD appears to have been prepared by the law firm of JPink Law, was witnessed by Jay Pink, Esq. (“Pink”) and was recorded on May 31, 2022. Plaintiff has also filed a Petition to Determine Succession to Primary Residence pursuant to Probate Code sections 13151 and 13152 in Case Two. According to Plaintiff, Lemp has recently quitclaimed the TOD for the Arrowhead Property to non-party Shane Miranda (“Miranda.”)

The cases were consolidated with 25CV48280 as the lead case for filings.

## **II. Legal Standard and Discussion**

### **A. Motion for Summary Adjudication**

Plaintiff’s motion for summary adjudication does not comply with Code Civil Procedure section 437c(b)(1) because it does not include a “separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed.” In addition, the motion fails to comply with California Rule of Court Rules 3.1350(b) and (c).

“The separate statement is not merely a technical requirement, it is an indispensable part of the summary judgment or adjudication process.” (*Whitehead v. Habig* (2008) 163 Cal.App.4th 896, 902.) Indeed, the “due process aspect of the separate statement is self-evident – to inform the opposing party of the evidence to be disputed to defeat the motion.” (*United Community Church v. Garcin* (1991) 231 Cal.App.3d 327, 337.) While the statute gives the Court discretion to consider a motion in the absence of a separate

statement, the “prevailing view is that it is only in the truly exceptional case involving a single, simple issue with minimal evidentiary support that a court will consider the merits of a motion unaccompanied by a separate statement.” (*Id.* at 335.)

Accordingly, Plaintiff’s **motion for summary adjudication is DENIED, without prejudice.**

## **B. Motion to Determine Validity of Contract/ Will**

Plaintiff seeks an order from the Court determining that Arallanes’ handwritten contract was properly executed and valid. Essentially, Plaintiff is making a second motion for summary adjudication which the Court has already denied.

The Plaintiff’s **motion to determine validity is DENIED, without prejudice.**

## **C. Motion to Dismiss**

Lemp moves for an order dismissing both cases on the grounds that Plaintiff is not a licensed contractor and therefore cannot sue for failure to pay based on a contractor’s job. (Bus.& Prof.Code §7031.)

Bus. & Prof. Code section 7031 provides:

(a) Except as provided in subdivision (e), no person engaged in the business or acting in the capacity of a contractor, may bring or maintain any action, or recover in law or equity in any action, in any court of this state for the collection of compensation for the performance of any act or contract where a license is required by this chapter without alleging that they were a duly licensed contractor at all times during the performance of that act or contract regardless of the merits of the cause of action brought by the person...

Lemp argues that Plaintiff originally brought his claims against Arellanes for breach of contract and alleged that he had a contract to build a home for Arellanes for compensation and that she breached that contract. Lemp argues that it was only after Plaintiff became aware of the restrictions of section 7031 that he argued that he and Arellanes were domestic partners and he was exempt as a builder-owner. Lemp asserts it is unfair to allow Plaintiff to continue pursuing his claims because he has never produced evidence of a contractor’s license and shouldn’t be allowed to go back on his original allegations.

While it is true that the original complaint was for breach of contract, it is not as simple as stating that it was only a complaint for breach of a construction contract. First, it is clear from that Complaint that the “compensation” was the transfer of half of the ownership of the property to Plaintiff. The alleged breach was also related to Arellanes borrowing money from Plaintiff and failing to pay it back. There were also allegations of the failure to quitclaim the property to him, and the costs associated with moving Arellanes. Finally, there were allegations of fraud which again go beyond a garden-variety dispute over money owed to an unlicensed contractor. Plaintiff alleged that he did things beyond construction – including moving Defendant, loaning her money, and paying for her storage – all under the belief that he would eventually own half the property. Thus, Lemp’s categorization of this Complaint as a simple claim for fees arising out of a construction contract is overly simplistic.

Accordingly, at this juncture and based on the pleadings currently before it, the Court declines to dismiss Plaintiff’s complaint.

The Defendant’s **Motion to Dismiss is DENIED, without prejudice.**

#### **IV. Conclusion**

Plaintiff’s motion for summary judgment is denied, without prejudice.

Plaintiff’s motion to declare contract valid is denied, without prejudice.

Lemp’s motion for an order of dismissal is denied, without prejudice.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit formal Orders complying with Rule 3.1312 in conformity with this Ruling on his Motions and Defendant the same as to her motion.